

		filing of cross-complaints. (Weil & Brown, Cal. Prac. Guide, Civ. Proc. Before Trial (Rutter 2024) § 6:557.) Code of Civil Procedure section 428.10 governs permissive cross-complaints. It provides in relevant part: “A party against whom a cause of action has been asserted ... may file a cross-complaint setting forth [¶] ... [¶] (b) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him.” (Code Civ. Proc., § 428.10, subd. (b).) Vesta Foodservice proposed Cross-Complaint asserts causes of action for equitable indemnity, apportionment of fault/contribution, and declaratory relief. (ROA 73, Rystad Decl. ¶ 12, Exh. A [Proposed Cross-Complaint].) These claims arise out of the transaction, occurrence, or series of transactions or occurrences as those alleged in Plaintiffs’ Complaint, but will not accrue until Vesta Foodservice suffer actual loss through payment. (E.L. White, Inc. v. City of Huntington Beach (1978) 21 Cal.3d 497, 506.) Accordingly, Vesta Foodservice’s proposed Cross-Complaint is permissive. Vesta Foodservice has not unreasonably delayed in seeking leave to file its proposed Cross-Complaint against Times Produce, Inc. and no prejudice to any party has been identified. The motion is granted. Defendant L.A. Specialty Produce Co., Inc. dba Vesta Foodservice shall give notice and file and serve the Cross-Complaint attached to the Declaration of Ryan L. Rystad as Exhibit A by April 25, 2025.
5	23-01310202 <i>Er vs. Chow</i>	1) Motion to Compel Production 2) Motion to Compel Production 3) Motion to Quash Subpoena <u>Plaintiff’s Motion to Quash</u> Plaintiff/Cross Defendant Piper Er’s Motion to Quash is GRANTED in part, by modifying categories 3-8 to exclude documents or communications which relate to Kent’s representation of Er in her individual capacity and DENIED in part as to categories 1-2 and 9-10. The court “may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders.” (Code Civ. Proc., § 1987.1(a).) Categories 1-2 and 9-10 do not seek documents related to Plaintiff. They solely seek documents regarding Caesar Global. Categories 3-8 similarly seek documents regarding Caesar Global, however, they are overbroad and Er’s privileged documents may also be included. Thus, the Court modifies categories 3-8 to exclude documents or communications which relate to Kent’s representation of Er in her individual capacity.

Defendant's Motion to Compel, Set Two

Defendant Jun Chow's Motion to Compel Further Responses to Requests for Production, set two, is GRANTED. Plaintiff is ORDERED to provide further responses within 20 days of this order. Plaintiff and her counsel, jointly and severally, are ORDERED to pay \$6,060 in sanctions within 20 days of this order.

Plaintiff's general objections are improper. Objections must be made to each particular response. (See Code Civ. Proc., § 2031.210(a)(3).)

Plaintiff's responses to no. 62-63, 67-69, 76-78, 80, 90-96 are improper as they indicate that a diligent search had not been completed prior to responding to the request. Further, Plaintiff is instructed to provide a privilege log for requests no. 90-96.

No. 64-65 seek all communications between Plaintiff and any person regarding Caesar Global's property or loans. Plaintiff's attorney-client privilege and work-product objections to no. 64-65 are sustained. Plaintiff's overbroad and unduly burdensome objections are overruled. Similarly, no. 75 seeks all communications between Plaintiff and Caesar Global's counsel. Plaintiff's attorney-client privilege and work-product objections are sustained, however, her overbroad and unduly burdensome objections are overruled. Plaintiff is to provide a further response as to all non-privileged documents as only part of the request is objectionable.

No 65-66 and 69-73 seek all communications between Plaintiff and Defendant; Lili Chen, one of Caesar Global's forming members; Plaintiff mother, Xy Ying Liu; or Johnny Cajas. Plaintiff's attorney-client privilege, work-product, overbroad and unduly burdensome objections are overruled because none of the parties listed are Plaintiff's counsel. To the extent Plaintiff did not produce documents she claims are subject to the attorney-client privilege or attorney work-product doctrine and claims there are in fact privileged documents responsive to the categories, Plaintiff must serve a privilege log to allow Defendant and the Court to evaluate the claimed privilege.

No. 79 and 81 seeks all corporate and employment records of JP Global. Plaintiff's attorney-client privilege, work-product, overbroad and unduly burdensome objections are overruled. To the extent Plaintiff did not produce documents she claims are subject to the attorney-client privilege or attorney work-product doctrine and claims there are in fact privileged documents responsive to the categories, Plaintiff must serve a privilege log to allow Defendant and the Court to evaluate the claimed privilege.

No. 82-89 seek the corporate records of Louver, Louver Enterprise, Louver Enterprise Inc., Louver Enterprise Global, La Fleur, Louver Inc., La Seule. Plaintiff's attorney-client privilege, work-product, overbroad and unduly burdensome objections are overruled. To the extent Plaintiff did not produce documents she claims are subject to the attorney-client privilege or attorney work-product doctrine and claims there are in fact privileged documents responsive to the categories, Plaintiff must serve a

		privilege log to allow Defendant and the Court to evaluate the claimed privilege. Thus, further responses are required as to no 62-96. <u>Defendant's Motion to Compel, Set Three</u> Defendant Jun Chow's Motion to Compel Further Responses to Requests for Production, set three, is GRANTED. Plaintiff is ORDERED to provide further responses within 20 days of this order. Plaintiff and her counsel, jointly and severally, are ORDERED to pay \$1,260 in sanctions within 20 days of this order. Defendant's reply is not considered because it is untimely. (Cal. Rules of Court, rule 3.1300(d).) Plaintiff's responses to no. 97-103 are improper as they indicate that a diligent search had not been completed prior to responding to the request. Further, Plaintiff is instructed to provide a privilege log for requests no. 101-103. Thus, further responses are required for no. 97-103.
6	22-01244666 <i>Integritox Laboratories, LLC vs. Chan</i>	Motion for Leave to File Amended Cross-Complaint Cross-Complainant Daniel Y.K. Chan's Motion for Leave to Amend the Cross-Complaint is GRANTED. "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code of Civ Proc. § 473(a)(1).) "Generally, leave to amend must be liberally granted [citations], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation." (<i>Solit v. Tokai Bank, Ltd. New York Branch</i> (1999) 68 Cal.App.4th 1435, 1448.) Here, Cross-Complainant seeks leave to file the proposed amended cross-complaint which adds several Cross-Defendants who are allegedly alter egos of Cross-Defendant Integritox. Cross-Complainant contends the identities of the new Cross-Defendants were discovered at the 4/17/24 deposition of Integritox's payroll processor, who testified Integritox employees had moved to Laboratory Services MSO and that Integritox's revenues had also been moved to Laboratory Services MSO by Sarah Cox, an owner of Integritox. Therefore, Cross-Complainant seeks to add Sarah Cox, SCBC Holdings, LLC (another LLC owned by Cox), and Laboratory Services MSO, LLC as Cross-Defendants.